## CODIFICATION GUIDE—Con.


| Title 34—National Military Establishment—Continued | Page |
|---|---|
| Chapter VI—Department of the Navy—Continued | |
| Part 754—Guam claims | 8568 |
| Part 760—American Samoa Naval Defensive Sea Areas and Naval Airspace Reservations | 8568 |
| Part 761—Guam Naval Defensive Sea Area and Naval Airspace Reservation | 8569 |
| Part 765—Rules applicable to the public | 8570 |


ticable to list all types of such official records. The Secretary will, however, determine when application is made whether or not any document is an official record, and whether or not it should be withheld as confidential, according to the principles herein stated.

(c) Without limiting the discretion vested in the Secretary of the Navy by the other provisions of this rule access will not be granted to:

(1) Material classified "Restricted," "Confidential," "Secret," "Top Secret," or any other security classification which may be established, pursuant to Article 76 of the Navy Regulations.

(2) Material, such as tax returns, which is made confidential by law. (Cf. sec. 55 (f) (1) of the Internal Revenue Code.)

(3) Documents which in the opinion of the Secretary contain information which would be of possible assistance to a foreign power in time of peace or to an enemy in time of war, or containing information which, in his opinion, for reasons of public policy should not be disclosed to persons outside the naval or military establishments.

(4) Documents, the disclosure of which would involve the violation of a statute or the breach of a legal or moral obligation to keep information confidential.

(5) Intra-governmental memoranda, reports, and documents not prepared for publication or not official records. The foregoing are deemed confidential according to the principles herein stated.

(d) The Secretary will also determine whether an applicant is properly and directly concerned with the record to which he seeks access, when it is not specifically covered in this rule.

(e) Officers' and enlisted men's service records are deemed confidential for good cause found within the meaning of this rule except to persons properly and directly concerned, including the serviceman himself, and personal representatives of the serviceman, e. g., executors, conservators, etc., who present proper proof thereof. The serviceman, former serviceman, or personal representative may obtain access to health records by applying to the Chief of the Bureau of Medicine and Surgery, Navy Department, Washington 25, D. C., and to other personnel records to the Chief of Naval Personnel, Navy Department, Washington 25, D. C. Application may be made in person or in writing.

(f) Copies of office records or summaries thereof relating to deaths of naval personnel and information relating thereto will ordinarily be furnished upon application to the Judge Advocate General, Navy Department, Washington 25, D. C., to persons properly and directly concerned.

(g) Access will normally be granted by inspection, at the place where the documents are kept and stored.

(h) If the Secretary determines that one or the other of the principles stated above requires the refusal of a request to make information available, prompt notice of any such refusal will be given to the applicant, together with a simple statement of the grounds for such refusal.

(i) The Secretary has legal custody of all official records of the Navy Department, and no subpoena duces tecum directed to any Navy Department employee or officer other than the Secretary is legally valid or effective to compel such officer or employee to produce any official record of the Navy Department, or other report, paper, or document in its custody. It is hereby declared to be contrary to the public interest to produce in any proceeding or trial any memorandum or document from Navy Department files to which access has not been asked and granted pursuant to this rule, whether a public record or not.

(j) This rule regarding public records has not application to access to records by officers or employees of other agencies or branches of the Government.

(k) This rule regarding public records has no application to any records which by law or policy of the Department are made available to the public generally, to any records which are in the custody of the Archivist of the United States, nor to any records which are disposed of under 44 U. S. C. 366 et seq., 57 Stat. 380 as amended. (Secs. 3, 12, 60 Stat. 238, 244; 5 U. S. C. 1002, 1011)

§ 701.2 *Production of documents in civil court in response to a subpoena duces tecum.* Unless authorized by the Secretary of the Navy, persons in the naval service and civil employees are prohibited from producing official records or copies thereof in a civil court in answer to subpoenas duces tecum, or otherwise, and from disclosing the information described in article 113,[1] Navy Regulations, or the secret and confidential correspondence and information described in article 2005,[1] Navy Regulations. In all cases where copies of records are desired by or on behalf of parties to a suit, whether in a Federal or State court, such parties will be informed that it has been the invariable practice of the Navy Department to decline to furnish in the case of legal controversies, at the request of the parties litigant, copies of papers or other information to be used in the course of the proceedings, or to grant permission to such parties or their attorneys to make preliminary or informal examination of the records, but that the department will promptly furnish copies of papers or records in such cases upon call of the court before which the litigation is pending. In all cases where the production of records in civil courts is authorized, the original records are not to leave the custody of the person producing them. However, copies of such records may be introduced into evidence. (Secs. 3, 12, 60 Stat. 238, 244; 5 U. S. C. 1002, 1011)

### Subchapter B—Executive Orders, Proclamations, and Public Land Orders Applicable to the Navy

### PART 702—TABULATION OF EXECUTIVE ORDERS, PROCLAMATIONS, AND PUBLIC LAND ORDERS APPLICABLE TO THE NAVY

Sec.


702.1 Regulatory Executive orders; declaring closed ports.
702.2 Regulatory Executive orders; establishing naval airspace reservations.
702.3 Regulatory Executive orders; establishing defensive sea areas.
702.4 Executive orders and public land orders; covering naval reservations.


§ 702.1 *Regulatory Executive orders; declaring closed ports.*

| State or Territory | Location | Number | Date |
|---|---|---|---|
| Alaska | Kiska | E. O. 1613 | Sept. 23, 1912 |
| Cuba | Guantanamo | | |
| Florida | Tortugas | | |
| Hawaii | Pearl Harbor | | |
| Pacific | Guam | | |
| Philippine Islands | Subic Bay | | |
| Puerto Rico | Great Harbor, Culebra | | |

§ 702.2 *Regulatory Executive orders; establishing naval airspace reservations.*

| State or Territory | Location | Number | Date | Citation | Remarks |
|---|---|---|---|---|---|
| Alaska | Aleutian Islands | E. O. 7138 | Aug. 12, 1935 | | |
| | Sitka and Kodiak | E. O. 8597 | Nov. 18, 1940 | 5 F. R. 4559 | Sitka naval airspace reservation discontinued by E. O. 9720 of May 8, 1946. |
| | Kiska and Unalaska Islands. | E. O. 8680 | Feb. 14, 1941 | 6 F. R. 1014 | Amended by E. O. 872 of Apr. 9 2, 1941. |
| Cuba | Guantanamo | E. O. 5281 | Feb. 17, 1930 | | |
| | Guantanamo Bay | E. O. 8749 | May 1, 1941 | 6 F. R. 2252 | |
| Hawaii | Pearl Harbor | E. O. 5281 | Feb. 17, 1930 | | |
| | Kaneohe | E. O. 8681 | Feb. 14, 1941 | 6 F. R. 1014 | |
| Pacific | Guam Harbor | E. O. 5281 | Feb. 17, 1930 | 6 F. R. 1015 | |
| | Johnston Island | E. O. 8682 | Feb. 14, 1941 | do | Amended by E. O. 8729 of Apr. 2, 1941. |
| | Kingman Reef | E. O. 8682 | do | do | Do. |
| | Midway Island | E. O. 8682 | do | do | Do. |
| | Wake Island | E. O. 8682 | do | do | Do. |
| | Guam Island | E. O. 8683 | do | do | Do. |
| | Rose Island | E. O. 8683 | do | do | Do. |
| | Tutuila Island | E. O. 8683 | do | do | Do. |
| Puerto Rico | Great Harbor, Culebra. | E. O. 5281 | Feb. 17, 1930 | | |
| | Culebra Island | E. O. 8684 | Feb. 14, 1941 | 6 F. R. 1016 | |

[1] Available at the Office of the Chief of Naval Operations, Navy Department.